

RISCHBIETER v. BLUE LAKE SPRINGS HOA

15CV40810

DEFENDANT’S MOTION FOR ATTORNEY FEES

This civil action involves a dispute over HOA monthly assessments, and whether an assessment per lot (rather than per member) was proper. Before the Court this day is an unopposed defense motion for both contractual and statutory attorney fees (see Civil Code §§ 1717 and 5975) related to defendant prevailing on appeal.

Code of Civil Procedure §§ 1032(b) and 1033.5(a)(10) collectively provide that the prevailing party in a civil action may recover, as a matter of right, attorney’s fees when authorized by contract or statute. The “prevailing party” is the party with a net monetary recovery or for whom judgment is entered. (CCP §1032(a)(4).) There is no question here that defendant is the prevailing party, having secured both a judgment in its favor (see 06/18/18 Judgment), as well as in the instant matter an unqualified affirmance before the Third District Court of Appeal. Defendant was previously awarded fees of \$263,361.97 in the underlying case and is entitled to additional fees incurred related to the appeal, as awarded by 3DCA..

Where a legal basis for the recovery of fees exists, courts will weight various factors to reach a “reasonable” amount to award – commonly referred to as the lodestar. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, over-staffing, duplication or marked inefficiency. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 272.) Other factors courts consider include the development of the case, the complexity of the issues, and how long the court estimates it should have taken to perform the services. (*Maughan v. Google Technology, Inc.* (2006) 143 Cal.App.4th 1242, 1249.) After the courts determine the number of hours reasonably necessary to the conduct of litigation, the final step is to determine an appropriate hourly rate for the work performed, based on market trends in the particular region for that kind of work. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 619; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Defense counsel proffers an hourly rate between \$305 and \$395 per hour, and a billing summary reflecting approximately 280 hours of attorney time. Although this Court often reduces hourly fees to the community going rate of \$300, and notes a number of time entries for analyzing and strategizing, and what amounts to several weeks’ of “drafting” the appellate brief, the Court declines to second guess work required to prevail on appeal as the appellate environment is quite different from trial court proceedings. Noting the requested attorney’s fees on appeal are roughly 1/3 of those previously awarded on the underlying case, the Court declines to second guess the current claims. Thus, defendant

shall recover \$89,728.25 in attorney's fees and \$3,034.20 in costs pursuant to the filed memorandum (noting no motion to tax those costs was ever filed), for a total fees and costs award of \$92,762.45, payable forthwith..

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

LVNV FUNDING v. COPPS

21CF13587

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a limited jurisdiction collections case involving a debt of \$2,793.06. Before the Court this day is an unopposed motion by plaintiff for a judgment on the pleadings directed at defendant's barren answer.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar **shall** include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language in the notice, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.